

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ANDREW ADELEKE,

Plaintiff,

-against-

THE CITY OF NEW YORK, UNDERCOVER
POLICE OFFICER (“UC”) #9177, Individually and in
their Official Capacity, P.O. NICHOLAS GULLO,
Tax Id. No. 952816, Individually and in his Official
Capacity, and POLICE OFFICERS “JOHN DOE” #1-
10, Individually and in their Official Capacity (the
name John Doe being fictitious, as the true names are
presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Queens
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of
your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance
on the Plaintiffs’ attorney within 20 days after the service of this Summons, exclusive of the day of
service, where service is made by delivery upon you personally within the state, or, within 30 days
after completion of service where service is made in any other manner. In case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
Complaint.

Dated: NEW YORK, NEW YORK
June 24, 2021

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

GEORGIA PESTANA
Acting Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

UNDERCOVER POLICE OFFICER (“UC”) #9177
c/o NYPD Headquarters
1 Police Plaza, Rm. 110C
New York, NY 10038

P.O. NICHOLAS GULLO, Tax Id. No. 952816
103rd Precinct
168-02 91st Ave.
Jamaica, NY 11432

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Defendants.

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Plaintiff ANDREW ADELEKE by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff ANDREW ADELEKE is an African-American male and has been at all relevant times a resident of Queens County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, UNDERCOVER POLICE OFFICER (“UC”) #9177, P.O. NICHOLAS GULLO, Tax Id. No. 952816, and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about January 16, 2020, in the County of Queens, City, and State of New York, plaintiff ANDREW ADELEKE was lawfully present in the vicinity of 153rd Street and South Road at approximately 10:06 p.m.

9. At the above-mentioned time, place, and occurrence, plaintiff saw an attractive female and began to speak with her. The conversation was benign in nature, plaintiff asked her what her name was, where she was from, and whether she would be interested in going on a date with him.

10. At no time on January 16, 2020, did plaintiff agree to pay a fee to this woman upon the understanding that she would engage in sex and/or sexual acts with him.

11. Nonetheless, several moments later, plaintiff was approached by several members of the NYPD, including defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10, who forcefully pulled plaintiff from his vehicle and then immediately placed him under arrest by handcuffing his arms tightly behind his back.

12. At no time on January 16, 2020, did defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

13. At no time on January 16, 2020, did defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

14. Thereafter, defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 searched plaintiff’s person and effects. However, no contraband was found on plaintiff nor recovered from his person or effects as a result of this search, nor did he have custody or control over any contraband.

15. At no time on January 16, 2020, did defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

16. At no time on January 16, 2020, did defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects.

17. At no time on January 16, 2020, did plaintiff possess any contraband, have custody and control over any contraband, nor did he patronize a prostitute nor offer monies in exchange for sex/sexual acts, nor did he commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

18. Subsequently, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, questioned, confined against his will in a holding cell for several hours, and charged with a crime by defendants UC #9177, GULLO, and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, plaintiff was charged with Patronizing a Prostitute.

19. In addition, upon information and belief, plaintiff's vehicle was also searched. However, no contraband was recovered from said vehicle as a result of this search. Further, defendants UC #9177, GULLO, and/or POLICE OFFICERS "JOHN DOE" #1-10, impounded plaintiff's vehicle.

20. After being detained at the aforementioned precinct for several hours plaintiff was released with a Desk Appearance Ticket, requiring him to appear in court at a later date.

21. In connection with plaintiffs' arrest, defendants UC #9177, GULLO, and/or POLICE OFFICERS "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office. Thereafter, defendants UC #9177, GULLO, and/or POLICE OFFICERS "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants UC #9177, GULLO, and/or POLICE OFFICERS "JOHN DOE" #1-10 falsely stated, *inter alia*, that plaintiff agreed to pay a fee of twenty-five

dollars (\$25) to UC #9177 upon the understanding that UC #9177 would engage in sex/sexual acts with plaintiff.

22. As a result of the foregoing, plaintiff spent approximately eight (8) hours in custody before he was released. Thereafter, plaintiff had to make one (1) court appearance before all charges against him were adjourned in contemplation of dismissal on or about February 5, 2020.

23. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries, economic injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

24. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

25. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

26. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

27. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. As a result of the aforesaid conduct by defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

32. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

34. Defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

35. Defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that plaintiff agreed to pay a fee of twenty-five dollars (\$25) to UC #9177 upon the understanding that UC #9177 would engage in sex/sexual acts with plaintiff.

36. Defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

37. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

38. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

40. Defendants UC #9177, GULLO, and/or POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated

in defendants' presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff's arrest throughout all phases of the criminal proceedings.

41. Defendants UC #9177, GULLO, and/or POLICE OFFICERS "JOHN DOE" #1-10 further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

42. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

45. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
 - E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
46. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.
47. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
48. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
49. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
50. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
51. The acts complained of deprived the plaintiffs of their rights:
- A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;

C. Not to have summary punishment imposed upon them; and

D. To receive equal protection under the law.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
June 24, 2021

BY: 
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10007
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff ANDREW ADELEKE in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 24, 2021



ILYSSA S. FUCHS